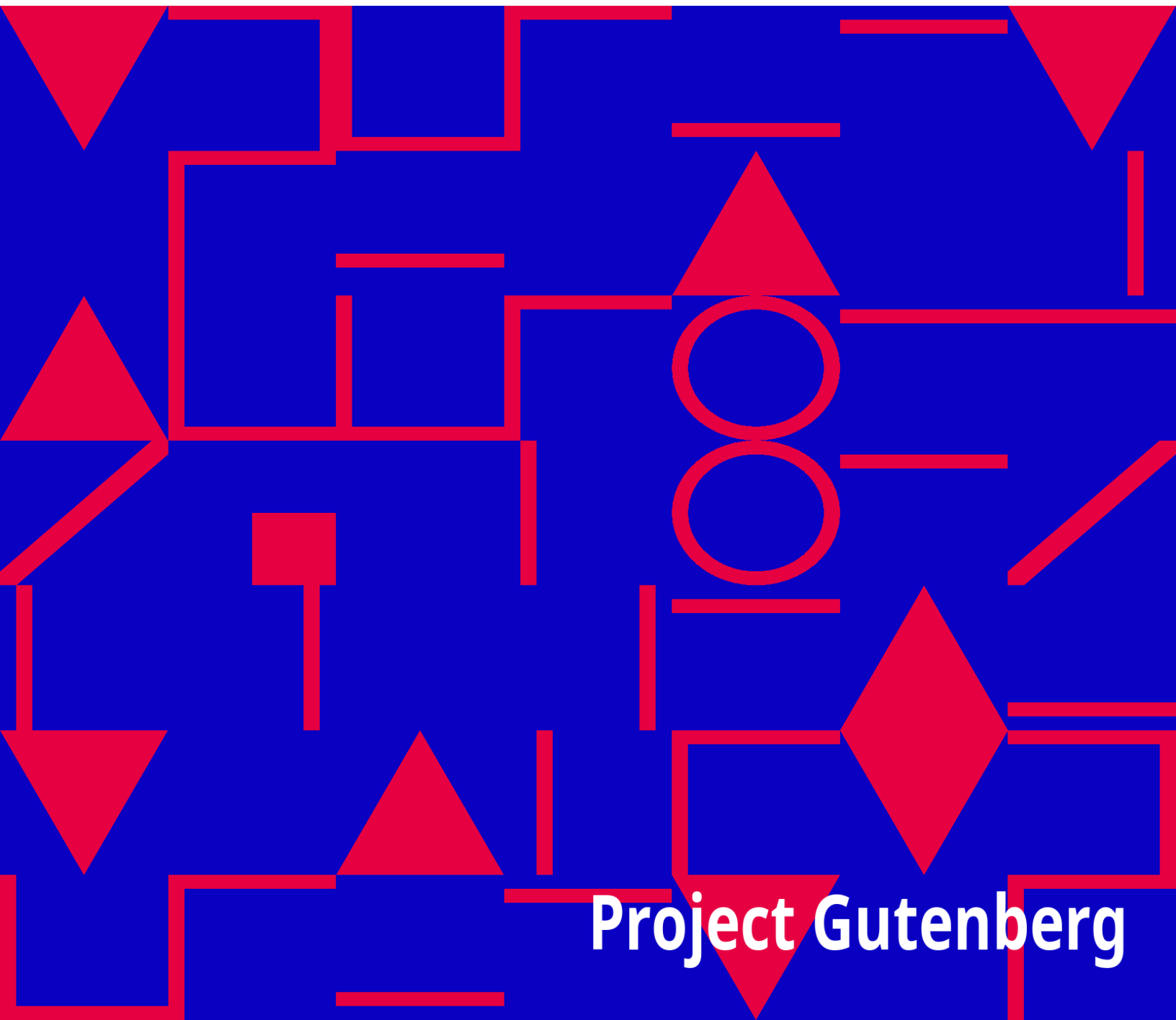


Splores of a Halloween, Twenty Years Ago

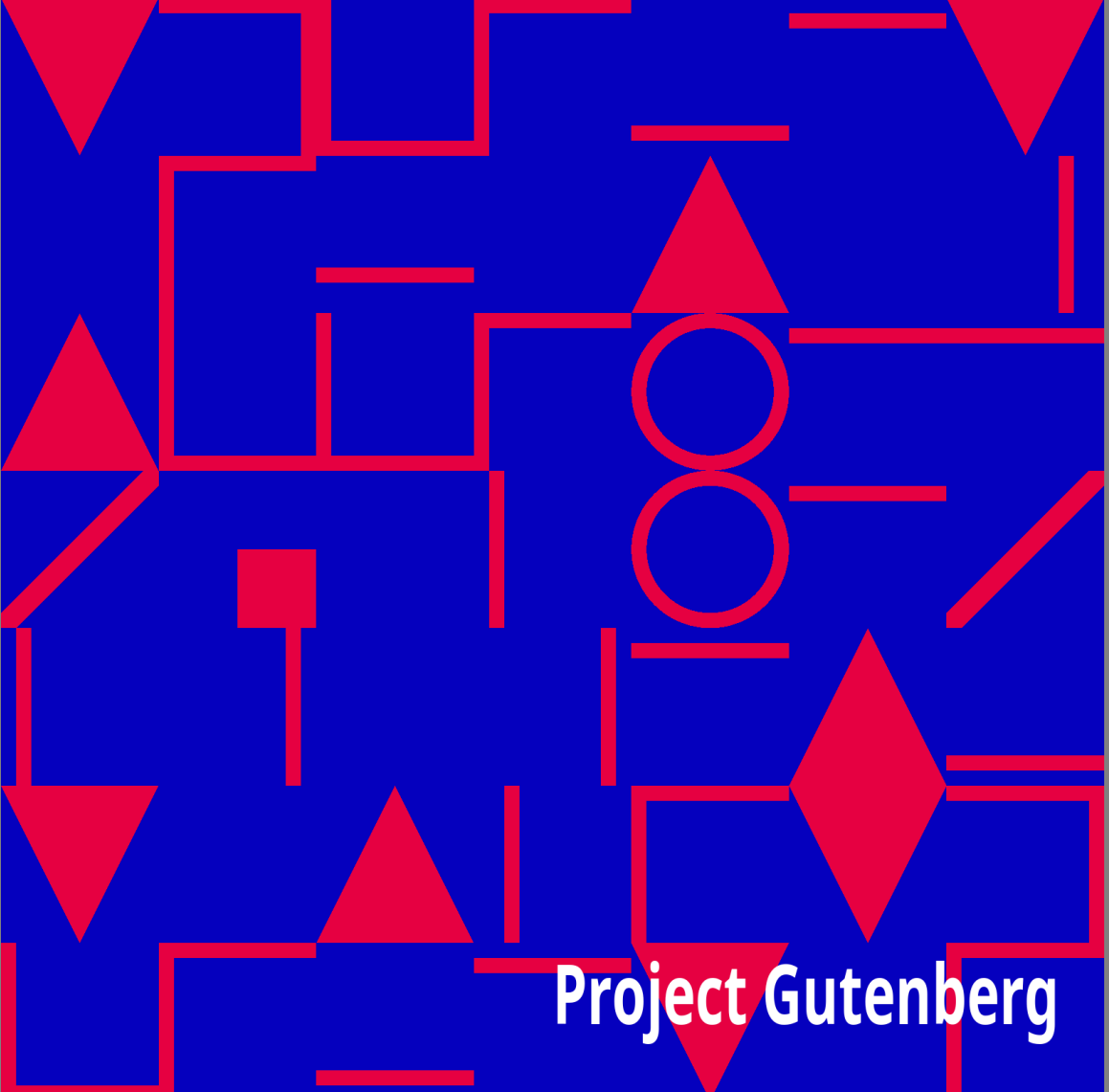
Alexander Dick

The background of the lower half of the page is a solid blue field filled with a complex, abstract pattern of red geometric shapes. These shapes include various sizes of triangles, squares, rectangles, circles, and lines, some of which are nested or overlapping to create a sense of depth and movement. The pattern is dense and covers the entire width of the page.

Project Gutenberg

Splores of a Halloween, Twenty Years Ago

Alexander Dick

An abstract geometric pattern consisting of various red shapes (triangles, squares, rectangles, circles, and diamonds) and lines on a blue background. The shapes are scattered across the lower half of the page, with some overlapping. The pattern is framed by a thick blue border at the top and a thick grey border on the left and right sides.

Project Gutenberg

The Project Gutenberg eBook of Splores of a Halloween, Twenty Years Ago

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Splores of a Halloween, Twenty Years Ago

Author: Alexander Dick

Release date: December 29, 2010 [eBook #34780]

Language: English

Other information and formats: www.gutenberg.org/ebooks/34780

Credits: Produced by Heather Clark and the Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK SPLORES OF A
HALLOWEEN, TWENTY YEARS AGO ***

SPLORES

OF A

HALLOWEEN,
TWENTY YEARS AGO:
BY ALEXANDER DICK.

WOODSTOCK, C. W.:
WILLIAM WARWICK, PUBLISHER.
1867.

PREFACE.

The following verses were sent to compete for the prize offered in October last, by the Montreal Caledonian Society, for the “best poem on Halloween.” They were not successful; and some may be ready to ask, “Why then publish them?” It may be sufficient to reply, “I choose to do so;” “I choose to appeal from the award of the Judges to the decision of the public.” A single sentence will explain why I make such an appeal. The gentlemen appointed to act as judges based their decision, according to their published statement, as much upon “suitability for recitation at a public festival,” as upon “literary merit.” Had this been stated in the advertisement inviting competition it would have been all right. But it is very evident that all poems which might be judged unsuitable for such recitation, would necessarily be excluded from competition, whatever might be their “literary merits,” and the successful production could only be that which among the “suitable” was regarded as possessing the greatest literary excellence. It is

on this ground—and not because I could be so vain as to think that my production *ought* to have received the prize, while I was altogether unacquainted with not a few others which may have been rejected on the same principle—that I complain of the award of the Judges, and that I now appeal from that award by this publication.

A poem may be very well suited for recitation at a public festival, and possess very slight claims to any literary merit, while another indefinitely superior might not in such circumstances be suitable for recitation at all.

With the public I now leave the decision, and shall cheerfully acquiesce in its award whether favourable or the reverse.

A. D.

Woodstock, C. W., Jan., 1867.

HALLOWEEN.

This night we meet o' a' the nights,
For fun the very wale,
When melancholy taks its flight,
And graning pains grow hale;
When young anes, wi' sic antic tricks,
And wi' their laughin' music,
Gar auld anes tae forget their cares,
And feel't the best o' physic.

And though wi' some we used to meet
We canna haud this night,
Yet we are here to show we ne'er
Forget tho' out o' sight:—
And o' a HALLOWEEN langsyne,
I will to you rehearse,
And as a canter ye may like,

I'll gied to ye in verse.

Ae night gane bye, at gloamin' time,
When there was muckle steer,
Mang witch mid warlock gathered far
To ride in high career,
Some callants met, a merry crew,
Yet each a decent chiel—
Though on that night a' seem'd possessed
O' something o' the deil.

Their runts clean through and through were bored
And stuffed with raivelins fou,
And like a chimley when on fire
Each could the reek out spue:
And thus convened they council held,
Wi' handsel whar they'd gang;
A' being settled and now dark,
They set off in a bang.

It was resolved that they should try,
On Kate, their Jenny-reeker,
And see if 'twad hae ony guid
Upon a witch to smeeke her:
Jock through the key-hole sent a cloud
That reached across the house,
While in below the door reek rushed
Like water through a sluice.

Kate maistly chock't, wi' hostin' seized,
Ran to the door for air,
Wi' open mouth and gaspin' much
O' reek she caught the mair,
Nor could she speak but gasp for breath
When they took to their heel,
But black wi' rage she shook her neive
And wished them wi' the deil.

But whether Kate had power or no
To put them 'neath his will,
Frae this 'twad seem they could na get
O' mischief half their fill;
Frae door to door they madly ran,
Frae door to window flew,
Whare'er a crack or hole they fand
They in the reek did spue:

Till ilka door wide open flew
Wi' bang against the wa',
And some ane gaspin' shouted out
Some threat about the law;
Some chased, mair earnest, wi' a stick;
Auld Jinker threw his last;
And Supplejoints wi' elwand ran
Behind, though he ran fast:

On him they wheeled, and charging, fired,
In turn his Jenny-reeker,
Ane struck him on the head and bounced,
And ane gied him a keeker;
He turned his back and faster ran,
'Twas now their turn to follow—
But ere he reached his door his head
Had mony a heich and hollow.

Nae time was lost—to Rab's they ran,
But ere they reached the gate,
They haulted to mak sure their plan.
And guard against ill fate—
For weel they ken'd that Rab would watch
His cabbages that night,
But they resolved that them they'd hae
Afore the morning light.

Twa slippit up and oped the yett
And tied across a rape,
The others creepit through the hedge
At whar there was a gape,
And creepin' down amang the runts
They pued and pued their wale;
But Rab had spied the twa and thought
To catch them without fail.

They saw him tae, but ne'er let on
Till he at them did grab,
Then shouted as they lap and ran
Weel done! weel done, our Rab!
Rab in pursuit wi' a' his might
Fell lengthways at the yett,
The groans he gied were as the fa',
For Rab was heavy wecht.

But he, wi' noise and very rage,
'Twas said, went maist dementit,
And when he saw his cabbage smashed,
He fell right our and fentit—
For on his door wi' batt'ring rams
They made a grand attack,
And Rab within not darin' out
Was sure he heard it crack.

Nor yet on his alane did fa'
The brunt o' civil war;
A score and mae its hist'ry bear
In mony a dreadfu' scar;
And to relate a' that befell,
The incidents attendin',
This night and maist another till't
Wad scarcely hear the endin':

How Supplejoints a lesson got

To be discrete and civil;
And how it gied the priest a text
On a' the fruits o' evil;
How Grannie Wilson's rack fell down
Wi' sic a fearfu' din,
And owre the floor in bick'rin' race
Ran pewter plate and spune.

How Meg wi' toothache girm' sat
When startled, sprang a loup
That cured her toothache, but she fell
And coup't the water stoup;
And how quiet Willie frae his bed—
Wha gaed till't aye at dark—
Put past endurance and a' shame
Did chase them in his sark.

But here the battle grew owre hot,
So dreadfu' the alarms,
Now doors ahead wide open stood,
Wharin were mustered arms;
So what wi' those in rear that charged,
And what wi' those in front,
Against sic odds they ken'd 'twas rash
To battle wi' a runt:

So they retreated to the Crafts
And Council held o' war—
A' laughin', talkin', crackin' jokes,
Uninjured by a scar—
When Robie said, come on, let's gang,
Hugh Christie let us cage;
Now, Hugh was crabbit and they liked
To put him in a rage.

Wi' tiptae steps they slippit up,
And firmly tied the door,

Then gently tirmed—Hugh cried, “Wha’s there?”
Will gied a cuddie’s roar—
Hugh in a lowe, wi’ door in hand,
Said he would them he-haw,
When Jock like ony sheep did bae,
And Pate like cock did crawl.

Hugh finding that his threats were vain
For that the door was tied,
Began to swear, and kick, and pu’
And “let me out,” he cried;
When raging like a very bear,
And down him ran the sweat,
They a’ put out their utmost skill
To mak him yet mair het.

Some squeak’t on panes, some thump’t the door,
Some rumbled on the wa’
Wi’ muckle stanes, till Hugh was sure
The very house wad fa’;—
Now, Tam, the laird, sat on his loom,
When hearin’ sic a racket
He hurried out sayin’ to himsel,
Sure Hugh has now gane crackit.

But Tam was late—the stage was clear,
Yet Hugh still raged and swore—
Tam in gruff voice bid him be quiet—
What ailed him at the door?
Now this was mair than Hugh could stan’
Frae Tam to get the wite,
And getting vent, he burst on Tam,
Then baith began to flyte.

Hugh wanted out—Tam wanted in:
Each did the other blame—
Tam cried to Hugh, he’d break the door—

Hugh cried to Tam, gae hame;
But how it ended I ne'er learned,
But 'twas na then and there,
For, Hugh and Tam, they did'na speak
For weeks, and may be mair.

And now to Peggie's they are aff,
Wha's gley'd and maistly blin'—
Hoot! haudawa guid folks! ne'er fear!
They dinna mean o' sin;
They're daft wi' fun and this they ken—
A's game on Halloween—
For Baillies' threats and Provosts' laws
They dinna care a prein.

Jock gied a backie-up to Tam,
And Jimmie he stood bye,
When Tam should gie the chess a rap
That he should then let fly:
Tam gied twa raps, and Jimmie quick
Upon the sole let clash,
Wi' sic a noise that Peggie thought
Had fallen out the sash.

She hurried to the door and then
Weel blackguarded them a,
As scoundrels, rascals and far war,
Though ne'er a ane she saw;
Then owre the window 'gan to grape
And looked wi' head agee,
But fient a hole or crack she fand
And far less ane could see.

While graping here, and keeking there
In search o' cracks and hole—
For she was sure that some were broke,
For glass was on the sole—

Jock slippit up behind, unheard,
And kittled quiet her lug,
And ere she could to him turn round
He neist gied her a hug.

In muckle rage that ane would daur
Wi' her sic freedom tak,
She hurried in and quick took down
A jug beside the rack,
And filling it wi' water het
Frae kettle on the hob,
She sware his fairin she'd gie him
For sic a shameless job:

But muckle war for Peggie 'twas
To get in sic a fike,
Far better had she taen a stra
And kittled a wasps' bike—
For Nellie Brash was passing bye,
A fish-wife for a tongue,
And Peggie seeing something move
On her the water flung.

But Gude preserve us! what a screigh!
And what a dreadfu' aith!
Than limmar, jad, far war wi' aithis
She ca'd her in hale-claith;
And working hersel' up to wark,
Wi' screigh like ony fien',
She rushed on Peggie like a hawk,
And swore she'd straucht her een.

But Johnnie wi' a pluck that night
Was seen gaun in his door—
Now, a' that ken'd him, ken'd that he
A pluck did 'maist adore;
But maist a jaddie he did like,

Aboon a' ye could name,
For never man liked woman sic
As Johnnie liked his wame:

And Geordie guessing what was up,
Led aff his gallant corps—
Thinking it prudent Nell and Peg
Should settle their ain score—
They helped him up upon the dyke
And canny he crawled up
The gavel cape-stanes on his knees,
Till lum-head he did grup;

And raxing up upon his taes,
He neist looked down the lum,
Just then he heard a lively skirl
And Johnnie's weel-pleased hum,
And, thro' a pue o' steam and reek,
He saw amid a glow
The pan and in't a fork did pat
As to the tune—"My Joe"!

And bending owre he aimed fair
A stane as big 's my han',
And drappin 't down—a blaze got up—
He'd coupit owre the pan—
Quick as a squirrel he dreipit down
And owre the yard he ran,
As quick cam Johnnie to the front
A sair bewildered man;

And standin' out fornent the door
He stared up at the lum,
But fient a thing there could he see
Like either head or bum;
Then north he ran, then South again
The lum to look about,

But naething did he see or hear—
It must hae been Auld Clood:

Anither might hae blamed some ghaist,
But Johnnie's faith was matter,
He never dreamed o' starin banes,
His thoughts were something fatter—
He now looked up, then down the street
If he the cause could fin'—
Jock keeking round the corner, now,
Said to his neighbours—rin.

And aff they ran, and in an ace
They a' were out o' sight—
Now, Johnnie seeing naething that
Could throw on 't ony light,
Bethinkin' o' his pluck gaed in—
The sight was nane to please,
For some amang the ashes lay,
The rest was in a bleeze:

Did Johnnie, hank'rin', now sing dool?
Our birkies naething rued;
Nae sooner were they aff wi' him
Than a new splore was brewed:
Though muckle tickled at the thought
O' Johnnie's clappit wame—
Which might hae been as stent's a drum
And witness o' its fame—

Yet mair, by far, they liked sic fun
As garred the bluid weel dance;
They liked a chase frae ane that could
Break wi' them sic a lance:
Now, Jimmie Adams was that ane,
Nae daighie but guid mettle,
And he had what did recommend—

A wee spice o' the nettle:

That mettle they resolved that night
To put to sairest test,
Nor wad the faut be theirs if not
The nettle stung its best,
For Willie frae his pouch had taen
And charged a muckle scout,
And said that Jimmie he wad show
The wonders o' a spout.

Now weel they ken'd that he wad chase
And that tae like a gru'—
And whom he caught he'd mak him squeel
As e're did ony sow—
But what had they to fear frae him?
Each suppler than anither,
Nor was there ane but what might be
To Asahel a brither.

But they made ready for the race;
Their breeks they buckled up;
Their bonnets pued down to their lugs;
Their jackets buttoned up;
And aff they a' for Jimmie's set
When coming near the house,
They on their tiptaes slippit up
As quiet as ony mouse.

Will by the curtain keeking in
Saw Jimmie at his supper,
And aye the spune gaun round the bowl,
Syne dippin' in the butter;
He whispered this in Tammie's lug;
Tam oped the outer door—
Then Willie followed close behind
As silent as afore:

Tam cautious oped the inner door,
It gied the slightest squeak,
And Jimmie wondrin' what it was
In listenin' turned his cheek—
Just then a strone frae Willie's scout
Shot right into the spune,
Which was as fixed in middle way
Between the bowl and chin:

Bang, bang, gaed inner, outer door—
Nor Jimmie wi' a clout
Did dicht the parritch frae his face,
But up, and he was out:
Now, Tam and Will did trip and fa',
Ane north, ane south, were seen—
Out Jimmie cam, and trippit tae,
And fell right in between.

First down, first up, they aff like hares,
Each takin' different airts;
Nor there lay Jimmie lang to grane
And haud the bluidin parts—
But like a gru' he aff and ran
Wi' bicker down the street—
Na need had Tam, nor did he let
The dirt stick to his feet.

First down ae street, then up anither,
Then through an entry ran—
Here Jimmie, furious, in the dark,
Maist coupit owre a man—
He lost some grun, but did'na wait
If down to help him up—
His lufe owre youky was, to stay,
O' Tam to get a grup.

Thus Tam did lead, thus Jimmie chased,
Maist owre half o' the town,
But wishing Jimmie warmer wark
Began to wear him roun'
To Johnston's Corner as agreed,
There he his neighbours met,
Wha, seeing Jimmie in pursuit,
Took owre the Kirk-yard yett:

There Jimmie followed—now was fun—
A' round the kirk did rin,
Like drove o' stirks wi' tails on end,
And raging bull behin';
Syne out amang the headstanes ran,
And there they jouked about,
Here mony a jerk did Jimmie get
As he ran in and out.

At last he fell—they heard him pech
But saw nor heard na mair—
They did'na wait to ask him if
The part he hurt was sair;
But owre the dyke they maistly flew,
Syne yont the Crafts like stour,
Whar on the grass they lay and laughed,
And joked for maist and hour.

Till Jock said he na supper had,
That he was now gaun hame—
That he was as a whistle tume;
As tume as Johnnie's wame;
And Robie said he could na stan'
That he was maist clean gane,
His brawns he said gaed flappin round
And round about the bane.

But whether Sandy gaed straucht hame

Or no, there is some doubt,
For on neist morn, cencerning him,
A something leaked out;
The outs and ins I canna tell—
Some mystery about pouter—
Pate Bryce scarce put the kettle on,
When it flew owre his shouter.

Printed at Warwick's Job Office.

*** END OF THE PROJECT GUTENBERG EBOOK SPLORES OF A
HALLOWEEN, TWENTY YEARS AGO ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.